

25STCV19256 25STCV19256

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-11

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Case Number: 25STCV19256 Hearing Date: September 11, 2026 Dept: 731

[TENTATIVE] ORDER RE: PLAINTIFF

ZACHARY WECHSLER'S MOTION FOR PREFERENTIAL TRIAL SETTING PURSUANT TO CODE OF
CIVIL PROCEDURE SECTION 36(a)

Moving Party: Plaintiff, Zachary Wechsler

Opposing Party: Defendants, Holstrom, Block & Parke, APLC, Dennis M.

Sandoval, and Dennis M. Sandoval, A Professional Corporation

Notice: OK

Background Facts

Plaintiffs Zachary Weschler

("Plaintiff")— individually and as Trustee for the Adam Michael Wechsler Trust, the Adam Michael Wechsler First Party Special Needs Trust, the Miranda Wechsler First Party Special Needs Trust, and the Miranda Wechsler Third Party Special Needs Trust (the "Trusts")—sues Defendants Holstrom, Block & Parke, APLC, Dennis M. Sandoval, and Dennis M. Sandoval, A Professional Corporation ("Defendants"), pursuant to a January 23, 2026, First Amended Complaint ("FAC") alleging claims of (1) Legal Malpractice, (2) Breach of Fiduciary Duty, (3) Intentional Infliction of Emotional Distress, (4) Negligent Infliction of Emotional Distress, (5) Financial Elder Abuse, (6) Unfair Competition Under Business & Professions Code § 17200 Et Seq., and (7) Fraud and Fraudulent Concealment.

Now before the Court is Plaintiff's

motion for trial preference pursuant to Code of Civil Procedure section 36,

subdivision, on the grounds that Plaintiff is more than 70 years old and suffers from health complications rendering it necessary to apply trial preference to this action.

The motion is opposed by Defendants, who argue that while Plaintiff is more than 70 years old, he has failed to make the requisite showing for necessary trial preference.

Motion for Trial Preference

a. Legal Standard

A party who is over 70 years old may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) the party has a substantial interest in the action as a whole; and (2) the health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation. (Code Civ. Proc., § 36, subd. (a).)

An affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party. (Code Civ. Proc., § 36.5.)

“The issue under subdivision (a) is not whether an elderly litigant might die before trial or become so disabled that she might as well be absent when trial is called. Provided there is evidence that the party involved is over 70, all subdivision (a) requires is a showing that the party's “health . . . is such that a preference is necessary to prevent prejudicing [her] interest in the litigation. (*Italics added.*)” (Fox v. Superior Court (2018) 21 Cal.App.5th 529, 534 (Fox).)

“Subdivision (a) requires the granting of calendar preference to ‘prevent’ prejudice to a stricken litigant's interests. (*Italics added.*) The idea that [plaintiff] should be made to wait to file a preference motion until she is clearly in her final days—when attendance at a trial is hardly what she should be doing—makes no sense at all.” (Id. at p. 536.)

"Where a party meets the requisite standard for calendar preference under subdivision (a), preference must be granted. No weighing of interests is involved." (Fox, supra, 21 Cal.App.5th at p. 535.) Any inconvenience to the court or to other litigants is irrelevant and "[f]ailure to complete discovery or other pretrial matters does not affect the absolute substantive right to trial preference for those litigants who qualify for preference." (Swaithes v. Superior Court (1989) 212 Cal.App.3d 1082, 1085 (Swaithes).)

Discussion

After review, the Court finds in favor of Plaintiff.

First, Plaintiff is 70 years of age, having been born on March 26, 1956. (Motion, Rokaw Decl., ¶ 2.)

Second, the Court finds insufficient merit to the opposition arguments regarding Plaintiff's health representations being deficient and determines that Plaintiff provides sufficient grounds for a positive determination on this issue.

Plaintiff's moving papers attach a declaration from his treating physician, Joshua Alan Rokaw, M.D., who attests to his background and to Plaintiff suffering from serious medical conditions requiring careful monitoring and ongoing medical treatment, specifically "type 1 diabetes mellitus; (of over 50 years duration) maintained with insulin pump and continuous glucose monitoring system, exocrine pancreatic insufficiency, hypertension hyperlipidemia[,] coronary artery disease, obstructive sleep apnea and narcolepsy, and metabolic associated steatotic liver disease. In addition, he has Diabetic peripheral neuropathy; ANCA-Vasculitis; Grave's Disease with exophthalmos; Carcinoma of prostate; Narcolepsy without cataplexy; Sciatica; Lumbar spondylosis, DDD (degenerative disc disease); Gastroenteritis; Hypoglycemia associated with diabetes; Immunosuppression (due to Rituximab therapy); History of DVT; Polyarthrititis; Osteoporosis, and Dystonia, unspecified." (Motion, Rokaw Decl., ¶¶ 2-5.)

These representations sufficiently provide a basis for this Court to determine that Plaintiff requires trial preference to avoid prejudice against Plaintiff's ability to prosecute this

action through trial. The Court specifically notes that per the above authorities, Plaintiff need not be in dire health straits for his motion to be granted and that any concerns regarding the negative effects of trial preference on discovery are immaterial.

c. Conclusion

Plaintiff Zachary Wechsler's motion for trial preference is accordingly GRANTED.

Trial and Final Status Conference in this action is ORDERED ADVANCED to this date and CONTINUED to Friday, January 8, 2027, i.e., 119 days after this Order. (Code Civ. Proc., § 36, subd. (f) [trial no more than 120 days after grant of motion for trial preference].)

Plaintiff Zachary Wechsler is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.